Casa De Anza Association

NOTICE REGARDING DISCRIMINATORY RESTRICTIONS

In accordance with California Government Code 12956.1 the Association includes with this governing document the following information:

"If this document contains any restriction based on age, race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, familial status, marital status, disability, veteran or military status, genetic information, national origin, source of income as defined in subdivision (p) of Section 12955, or ancestry, that restriction violates state and federal fair housing laws and is void, and may be removed pursuant to Section 12956.2 of the Government Code by submitting a "Restrictive Covenant Modification" form, together with a copy of the attached document with the unlawful provision redacted to the county recorder's office. The "Restrictive Covenant Modification" form can be obtained from the county recorder's office and may be available on its internet website. The form may also be available from the party that provided you with this document. Lawful restrictions under state and federal law on the age of occupants in senior housing or housing for older persons shall not be construed as restrictions based on familial status."

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State of California

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OFFICE OF THE SECRETARY OF STATE

SECRETARY OF STATE

I, *BILL JONES,* Secretary of State of the State of California, hereby certify:

That the attached transcript of ____ page(s) has been compared with the record on file in this office, of which it purports to be a copy, and that it is full, true and correct.

THE GREAT SEAL OF THE STATE OF CALIFORNIA

IN WITNESS WHEREOF, I execute this certificate and affix the Great Seal of the State of California this day. of

APR 2 S 2001

Bill Jones

Secretary of State

SectState Farm Ca-107 (rev. 9/98)

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FIRST RESTATED ARTICLES OF INCORPORATION OF CASA DE ANZA ASSOCIATION

The undersigned certify that:

A. They are the President and the Secretary, respectively, of CASA DE ANZA ASSOCIATION, a California nonprofit mutual benefit corporation.

B. The Ai tidiesof incorporation of this Corporation are amended and restated to read as follows:

ARTICLE I.

NAME

The name of the corporation is CASA DE ANZA ASSOCIATION (the "Association"). The Corporation is formed to manage a common interest development under the Davis-Stirling Common Interest Development Act.

ARTICLE

MANAGING AGENT

The name of the Association's managing agent is: Victor E. Pickering, c/o Pacific States Management Company, and the agent's address is: 2510 Stevens Creek Boulevard, San Jose, CA 95128.The location of the Association's office, which is off-site, is: 2510 Stevens Creek Boulevard, San Jose, CA 95128. With respect to the Common interest Development: the Zip Code is 95125 (additional 4 digits vary for each unit in the project); the location is Cupertino, CA; the front street is Mary Avenue; the nearest cross street is Stevens Creek Boulevard.

ARTICLE

NONPROFIT CORPORATION LAW OF 19&O

This Corporation elects to be governed by all of the provisions of the Nonprofit Corporation Law of 1980 (California Corporations Code §§ 5000 at sec,) not otherMse applioable to it under part 5 of that Law.

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PURPOSES OF THE CORPORATION

This Corporation is a nonprofit mutual benefit corporation organized. unde:r the Nonprofit Mutual Benefit Corporation Law.

The purpose of this Corporation is to engage in any lawful act oi" activity for which a corporation may be organized under such Law.

This Corporation does not contemplate pecuniary gain or profit to its Members; and the specific purpose of this Corporation is to provide for management, administration, maintenance, preservation, and architectural control of the residential icts and Common Area within a certain tract of property situated in the County of Santa Clara, California, and to promote the health, safety, and welfare of all the residents within the property and any additions to the property as may subsequently be brought within the jurisdiction of this Corporation for this purpose, all according to that certain First Restated Declaration of Covenants, Conditions and Restrictions Establishing

a Plan for Condominium Ownership recorded or to be recorded with respect to the property in the Office of the Recorder of Santa Clara County.

Notwithstanding any of the above statements of purposes and powers, this Corporation shall not, except to an insubstantial degree, engage in any activities or exercise any powers that are not in furtherance of the specific purpose of this Corporation.

ARTICLE V.

DISSOLUTION'

This Corporation is intended to qualify as an owners association under the applicable provisions of the Internal Revenue Code and the California Revenue and Taxation Code. No part of the net earnings of this organization shall inure to the benefit of any private individual, except as expressly provided in those sections with respect to the acquisition, construction, or provision for management, maintenance, and care of the Corporation property, and other than by a rebate of excess membership dues, fees, or Assessments. So long as there is any lot or Parcel for which the Corporation is obligated to provide management, maintenance, preservation, or control, the Corporation shall not transfer all or substantially all of its assets or file a certificate of dissolution without the approval of 100 percent of the Members. In the event of the dissolution, liquidation, or winding-up of the Corporation, upon or after termination of the Project, in accordance with provisions of the Declaration, its assets remaining after payrnent, or provision for payment, of all debts and liabilities of the Corporation shall be divided among and distributed to the Members in accordance with their respective rights in the Project.

ARTICLE W.

AMENDMENTS

These Articles may be amended only by the affirmative vote of a majority of the Board, and by the affirmative vote (in person or by proxy) or written ballot of Members representing a majority of the total voting power of the Corporation.

C. The foregoing _ First Restatement ofArticies of Incorporation hes been duly approved by the reirired vote of Members and by the Board of Directors.

We further declare under penalty of perjury under the laws of the State of California that the matters set forth in this certificate are true and correct of our own knowledge.

Dated: '3 43 , 2001

"f Signature]

f Name of president

Signature

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[Name of secretary]

OFFICE OF THE SECRETARY OF STATE